

327 But after January 1st, 2020, I was on a phone conference with
328 him on February 1st of 2020 that had to do with the origins.
329 I met with him in his office with several staff, high level
330 staff, both including himself and other representatives from
331 both the extramural and intramural program for NIH on, I
332 think, February 12, 2020. And I believe that's it.
333 Oh, yes, I was also part of -- we were both part of an email
334 exchange that was associated with the Red Dawn group, which
335 was basically trying to help prepare the United States to
336 respond to -- to track and respond to the emerging COVID-19
337 pandemic.

338 Q Thank you.

339 BY MR. STROM.

340 Q On the Fauci meeting, you mentioned you
341 said -- I may have just misheard you -- intramural and
342 extramural NIAID staff?

343 A I believe so, yes.

344 Q Do you recall any names?

345 A Yeah. Auchinhue -- I've got to look at his
346 name.

347 Q Auchincloss?

348 A Yes, Auchincloss. Alan Embry. There's a
349 series of emails that included Maureen Beenan, and someone
350 else that I believe were also there. A few other names that
351 I can't recall.

402 emailed -- I think we were on the National Academy Origins
403 sort of committee together, so we would have interacted
404 there. He was on the call, on the February 1st call, so he
405 was there. I believe he emailed me the next day, and we were
406 going to have a call. But for the life of me, I can't
407 remember any details of that call, or whether it even
408 happened.

409 Q Dr. Michael Farzan?

410 A I've known Mike Farzan for a long time, all
411 the way back from the 2003 SARS epidemic, and so we have
412 communicated over the years. I believe he was on the May 1st
413 call, now that you mention his name, but I don't believe we
414 had any other direct emails with him.

415 Q May 1st or February 1st?

416 A Sorry, February 1st.

417 Q Dr. Eddie Holmes?

418 A I've known Eddie Holmes for a while as well.
419 He also emailed to pass on a 4chan threat. But otherwise,
420 no.

421 Q Dr. Ian Lipkin?

422 A I've known Ian Lipkin for a long time. We
423 were funded together on a grant that he was PI on for about
424 five years. Any time I go to New York, I visit him and talk
425 to him, sometimes stay at his house. We talk about science
426 off and on all the time, potential collaborative research

452 A I could provide them for you --

453 Q Okay.

454 A -- if you wanted.

455 Q That's fine.

456 A But they were basically Zhengli Shi's papers.

457 I can tell you her original paper on this, which was in

458 Nature around 2012, they were very vague about safety

459 conditions. They said they followed Chinese regulations.

460 But in a Journal of Virology paper, and I believe a PLOS

461 Pathogens paper are the two, I think, they actually stated

462 that they were doing the culturing work under BSL-2. And

463 then they continued that even into September of 2020, which I

464 thought was irresponsible.

465 Q Not the biosafety level that you would conduct

466 that work at?

467 A Well, I think you have to put it in

468 perspective. So biosafety regulations in the United States

469 are very clear, but they're heavily focused on known human

470 pathogens.

471 So when you move into animal pathogens, pathogens that are in

472 animals, where you don't really know the threat level, to

473 some extent, that becomes a decision between the investigator

474 and the local IBC, which may or may not talk to federal

475 authorities about whether this is appropriate or not.

476 So, for example, when we started working with zoonotic

477 coronaviruses, our underlying hypothesis was that there are
478 strains that exist in nature. They may be rare, but they
479 could -- they could potentially infect human cells. And if
480 that's your hypothesis, then you do it under BSL-3.

481 Q Yeah.

482 A The Chinese came to a different -- their
483 biosafety regulations are different. But, again, when you
484 ask me about specific regulations, as the Chinese would say
485 to me, Ralph Baric doesn't determine the biosafety levels in
486 this country, in China, right?

487 Q Yeah.

488 A So it's just different. So we were at a
489 higher level containment in the United States. And then
490 anyone who would ask me for these viruses, I would insist
491 that it be done at a higher level containment. So I kind of
492 set the standard in the United States.

493 Q Moving on with the communications questions.

494 Dr. Andrew Rambaut?

495 A Not to my recollection. Yeah, I don't even
496 know who he is, sorry.

497 Q Dr. Christian Drosten?

498 A I know Christian Drosten. We were members of
499 the Nidovirus Taxonomy Committee. So there was a large
500 number of emails between us and other members of the
501 committee about naming the novel coronavirus. Originally, it

502 was called -- what was it called, 2019 novel coronavirus, or
503 something like that, right?
504 And so that committee determined that we should name it SARS
505 Coronavirus 2, based on its viologenase, how closely related
506 it was to other sarbecoviruses, although it represented
507 completely different branches of the tree.
508 So the branch of the tree before SARS Coronavirus 2, there
509 were two branches. One were called clade 2 strains that
510 couldn't use human receptors or grow in human cells. And the
511 second was the SARS coronavirus 2003 related strains, like
512 WIV1 and SHC014 and a bunch of other viruses. So it's on
513 this branch of the tree. These have 6,000 nucleotide
514 differences than SARS2. So it was a new discovery.
515 So the taxonomy group basically says that it was closely
516 enough related to SARS1 and caused similar disease features,
517 that it should be named SARS2.

518 Q Do you recall receiving any pushback from the
519 Chinese?

520 A The Chinese were very unhappy about that. I
521 think several members of the committee received a lot of
522 pushback. I believe they ultimately wrote a paper that they
523 published saying that -- giving their reasons why they didn't
524 like that name.

525 Q Do you recall any of the reasons?

526 A I actually didn't read the paper, because I

527 didn't want to put up with the nonsense. But so you would be
528 asking me to speculate. I would guess that the SARS
529 coronavirus 2003 impact on Chinese society, and their view of
530 their nation was very -- was very extreme.

531 And so they're very sensitive. They're probably very
532 sensitive to any suggestion that they failed to put in
533 appropriate policies that would prevent another SARS-related
534 virus. That would be my guess, but I was not in the room,
535 right?

536 Q Thank you. Dr. Ron Fouchier?

537 A I've known Ron Fouchier for 15 years as well.
538 I'm part of a scientific advisory board for a CEIRR grant,
539 which is a center of excellence in virus research that is run
540 out of Mount Sinai. And Ron Fouchier is a member of that
541 group.

542 And so I'm familiar with his research. We talk about his
543 research when we had those meetings, I think they were by
544 Zoom, after COVID-19 occurred. He was one of the few
545 researchers that didn't shift his influenza virus program
546 into the COVID-19 at the time. So we didn't talk too much
547 about origins. He was on the February 1st call.

548 Q Do you recall any conversations with him
549 regarding kind of, like, genetic manipulation or being able
550 to manipulate viruses without leaving a trace?

551 A By -- from 2020 on?

702 Q And we're going to talk about this more, so
703 just briefly, conversations with Dr. Peter Daszak about the
704 origins?

705 A Just briefly about origins. So I think he, as
706 well as -- I don't know, several other people, as well as
707 seeing it on ProMED myself, sent me an email telling me that
708 there's an unknown respiratory disease in China, I think
709 around the 30th of December. So whenever that came out on
710 ProMED. And then on the 5th, he also emailed me to mention
711 that it was probably a coronavirus.

712 Q On January 5th?

713 A Around January 5th. I also had received
714 emails from other people that it was a coronavirus on January
715 5th. And by the 6th or so, I also knew it was a coronavirus,
716 because I was asked to review a paper.

717 Q Any conversations with Dr. Ben Hu?

718 A Not to my recollection.

719 Q What about Dr. Lanying Du?

720 A My capacity to link Chinese names to the
721 researchers is not good.

722 Q She was at the Blood Center of New York, and
723 is now at Georgia State.

724 A I don't think so, not to my recollection.

725 Q And Dr. Zhou Yusen or Yusen Zhou?

726 A I would have to do email research to know

727 that. No, nothing that comes to mind.

728 BY MR. SLOBODIN.

729 Q One more name. Dr. Lili Ren from the
730 Institute for Pathogen Biology in Beijing?

731 A If she did, it would not have been a
732 person-to-person email, I don't believe. It would have been
733 a group email.

734 So one of the things that was occurring in the early days of
735 the pandemic was that the National Academy set up some phone
736 conference calls between Chinese scientists and American
737 scientists. And they usually lasted an hour. And basically,
738 the goal of those calls was to discuss patient care,
739 diagnostics, public health control measures, those types of
740 issues, and basic science questions.

741 So it was very likely that there were several members from
742 China that would have been on that call. You had two pages,
743 two to three pages of pictures with names under them, and I
744 didn't take screenshots or anything. So I couldn't tell you.
745 The one person I know was on it was George Gao, and Zhengli
746 Shi was also on. Those are two people definitely I recall.

747 BY MR. STROM.

748 Q For the January 6th paper that you reviewed,
749 do you recall if that had the sequence of the virus?

750 A It did. When it was first sent, it did not.
751 All three reviewers immediately asked for the sequence.

752 BY MR. BENZINE.

753 Q Do you recall what the paper was?

754 A So review processes are normally confidential,

755 so if I tell you what journal it is and this comes out, then

756 I -- can we go off the record, so I can tell you that?

757 Q We can go off the record and talk about it,

758 and determine what to do. And I can talk to Clark about

759 redacting if we need to.

760 A Just the review process is supposed to be

761 confidential. So I would prefer that it remain confidential,

762 although I guess, to some extent, the paper got accepted,

763 so --

764 Mr. Benzine. We can go off the record.

765 (Discussion held.)

766 Mr. Benzine. We can go back on the record.

767 BY MR. STROM.

768 Q Dr. Baric, you referenced receiving a January

769 6th paper that was subsequently published?

770 A 6th or 7th.

771 Q It was subsequently published in Nature,

772 showing that the virus -- the unknown outbreak was caused by

773 a coronavirus.

774 A Yes.

775 Q And then you mentioned earlier that the

776 sequence of the virus was not initially provided. Do you

2652 notes and the invites, you're not listed anywhere, but you
2653 were on that conference call?

2654 A I wasn't listed on any of the invites?

2655 Q No.

2656 A I didn't know that. I'm kind of surprised.

2657 They clearly reached out to me. I don't know why they didn't
2658 reach out -- this must have been within the NIH staff?

2659 Q No, there was a conference call with Dr. Fauci
2660 and Dr. Andersen?

2661 A Wait, you're talking about the February 1st
2662 call.

2663 Q Yes, sir.

2664 A Not the February 11th call.

2665 Q Correct.

2666 A I'm sorry, I was confused. Can you restate
2667 the question?

2668 Q The February 1st call with Dr. Fauci,
2669 Dr. Andersen, and Dr. Farrar, and ten or so others, we have
2670 gotten emails from almost every American participant on the
2671 call, and haven't seen your name come up anywhere. So I was
2672 surprised to hear that you were on it. But I want to confirm
2673 that you were on the call?

2674 A I think I was. My recollection is this
2675 meeting was heavily dominated by the evolutionary biologists,
2676 who were split on the origin of the virus. Is that the

2677 meeting you're talking about?

2678 Q That sounds right.

2679 A So I must have been there.

2680 Q Do you recall how you got invited?

2681 A No, I thought I was on the email chain, to

2682 tell you the truth.

2683 Q I want to read a little bit from

2684 Dr. Andersen's interview.

2685 A Okay.

2686 Q We asked him these questions and asked him

2687 about the call.

2688 He said, "Ralph Baric, for example, is a name that came up.

2689 We all know Ralph, Ralph is a very important coronavirus

2690 biologist, but we also know that Ralph had very close

2691 associations and collaborations with the Wuhan Institute of

2692 Virology, for example. So if this did, in fact, originate

2693 from a lab, then, of course, he would not be a person to have

2694 on a call like this."

2695 A I must have been on that call. He may not

2696 have known it. It was -- again, right now, I have huge

2697 uncertainty about what call I was on, but he was there.

2698 Q I think we're talking about the same call.

2699 A I think we're talking about the same call.

2700 But I was on a phone, so it wasn't like a Zoom link for me.

2701 I didn't have anyone else's picture. So I was hearing mostly

2702 names, or I knew who they were, who was speaking.

2703 Q And you don't recall how you got on to the
2704 call?

2705 A I don't recall how I got invited.

2706 Q Okay.

2707 A No, I would have to look it up. I thought I
2708 knew, but apparently not.

2709 Q And you've discussed a little bit about the
2710 kind of back-and-forth of the people split on the origins
2711 question.

2712 A Yeah.

2713 Q Do you recall anything else from that
2714 conversation?

2715 A There was a fairly strong consensus, I think
2716 that was building toward the end of the call, that there
2717 wasn't data to support engineering, that there were other
2718 alternatives for the furin cleavage site.

2719 The receptor binding domain was still a little uncertain at
2720 that time, but if I remember correctly, one of the first
2721 pangolin strains had been sequenced and the sequence was
2722 available, which was very close to the SARS2 sequence, which
2723 argued that the RBD itself was natural origin.

2724 So that actually -- you know, in scientific method, you're
2725 trying to disprove a hypothesis. That actually was more
2726 against the current hypothesis, which was somebody tinkered

2952 on simultaneously, and so I could easily get things confused.

2953 Q Under a subpoena issued by this Committee,

2954 Dr. Andersen produced some Slack messages to us between him,

2955 Dr. Holmes, Dr. Garry, Dr. Rambaut, and then some were

2956 redacted, and we reviewed them in camera.

2957 Regarding this meeting, he said something about you, and I

2958 would like to get your side of the story on what he said. So

2959 this is --

2960 A Hopefully, he didn't say anything negative.

2961 Q This is a quote from Dr. Andersen's Slack

2962 messages. "I should mention that Ralph Baric pretty much

2963 attacked me on the call with NASEM, essentially calling

2964 anything related to potential lab escape ludicrous, crackpot

2965 theories. I wonder if he, himself, is worried about this,

2966 too."

2967 I'm just trying to get your side of this.

2968 A Can you read that again?

2969 Q "I should mention that Ralph Baric pretty much

2970 attacked me on the call with NASEM," National Academies,

2971 "essentially calling anything related to potential lab escape

2972 ludicrous, crackpot theories. I wonder if he, himself, is

2973 worried about this, too."

2974 A I don't recall this. So because of this, I'm

2975 going to at least say one thing that I gave in the BSEC

2976 meeting on January 25th or 26th. My summary of the origin of

2977 the pandemic was the following.

2978 There are three potential causes for that pandemic. First is
2979 natural origin, second was laboratory escape, and the third
2980 was genetically engineered.

2981 Q And what was the date of that again?

2982 A January 25th or 26th of 2020. So I don't know
2983 where he's coming from. That may have been his
2984 interpretation, but I'm surprised. I'm really surprised.

2985 Q When we saw it, I wanted to make sure we got
2986 your perspective on the record.

2987 A Can you read it one more time?

2988 Q Yes. "I should mention that Ralph Baric
2989 pretty much attacked me on the call with NASEM, essentially
2990 calling anything related to potential lab escape ludicrous,
2991 crackpot theories. I wonder if he, himself, is worried about
2992 this, too."

2993 A I'm really surprised about this, because I
2994 wrote a piece on his origin paper in Immunology, and said
2995 that laboratory escape was possible because of safety
2996 procedures in their laboratories. So it's not consistent
2997 with what I also reported to other groups publicly on when
2998 interviewed. So I don't believe he's attributing that to the
2999 right person.

3000 Q That's fair. And I wish I could show you the
3001 message, but like I said, it's redacted, so I don't have it.

3002 A What do you mean, it's redacted?

3003 Q When Dr. Andersen's counsel produced the Slack
3004 messages to us, they redacted some. So there's a big black
3005 box over them, and we requested to review them in camera.

3006 A So he's talking to somebody else, then.

3007 Q Yes.

3008 A Okay. No, I would just say that's
3009 inconsistent with what I've said publicly and privately that
3010 can be verified.

3011 Q Dr. Andersen was then the lead drafter of "The
3012 proximal origin of SARS-CoV-2" that came out in Virological
3013 in February, and then Nature Medicine in March. I know
3014 you're aware of the paper. Have you had an opportunity to
3015 review the paper in the last four years?

3016 A I looked at it before this meeting. I figured
3017 you guys might ask.

3018 Q So it came to two kind of conclusions. The
3019 first in the summary, and we've heard different stories from
3020 different authors, of the reviewers kind of ramped up the
3021 language to, we -- when we said laboratory construct, we
3022 meant like bioweapon, all kinds of things.

3023 But the first conclusion was, "our analysis clearly show that
3024 SARS-CoV-2 is not a laboratory construct or a purposefully
3025 manipulated virus."

3026 Do you agree?

3077 Q He put out some emails after the fact of an
3078 anonymous person that claimed that the "proximal origin"
3079 authors plagiarized some ideas and went a little bit too far.
3080 Are you aware of those emails?

3081 A John contacted me.

3082 Q Were you the --

3083 A No, I was not. I was not. I was building
3084 suspense.

3085 Q So Dr. --

3086 A And it worked.

3087 Q It did. Part of it is because Dr. Holmes
3088 thinks you were the one that contacted John Cohen.

3089 A Well, that's why he may say it. He and -- I'm
3090 forgetting his name, sorry -- Andersen. If that's what they
3091 thought, he may have been really irritated with me if he felt
3092 that it was me, but it was not.

3093 Q What did Mr. Cohen contact you about?

3094 A He was asking me the same question you asked
3095 me, was I the author of that statement? And I said, no, I
3096 was not.

3097 Q Do you know who is?

3098 A No, I don't.

3099 Q Shifting to another publication, going a
3100 little bit back in time, but the Lancet correspondence from
3101 February 19th, 2020.